



National Services Agreement

Effective Date: _____

This National Services Statement of Work ("SOW") is entered into by and between **Facility Solutions Group, Inc. ("FSG")** and _____ ("**Client**") under the Master Service Agreement ("MSA"), which is incorporated herein by reference.

Scope of Services

Facility Solutions Group, Inc. (FSG) offers international electrical field services.

Lighting Services

- Installation, repair, and maintenance of interior and exterior lighting systems.
- Lighting retrofits and upgrades.
- Computer-aided lighting design and planning.

Electrical Services:

- General electrical repairs and installations.
- Electrical construction and upgrades.
- Electrical gear and panel maintenance.

Technology Services:

- Energy Management Systems installation and maintenance.
- EV Charging installation and maintenance.
- Solar Repairs and Repower.
- Installation and repair of data and communications cabling.

Signage Services:

- Design, fabrication, installation, and maintenance of signage.
- LED conversion for existing signage.
- Custom and ADA-compliant signage solutions.

Rollouts and Special Projects:

- FSG will provide a detailed proposal outlining the scope, timeline, and cost for projects outside routine maintenance or repair. Work will commence upon the Client's written approval of the proposal.

FSG offers services at the following client-designated locations, subject to the availability of resources and local compliance as noted in Exhibit A.



Service Level Agreement

Service Response Commitment

FSG will use commercially reasonable efforts to respond to service requests within the timeframes outlined below.

Priority	Label	Acknowledge	Response (ONSITE)	Complete	Description
1	Emergency	15 minutes	4 hours	24 hours	Emergency response OT rates apply 24/7 (1.5 x hourly rate)
2	Same day	1 hour	8 hours	48 hours	Urgent Response OT rates apply 24/7 (1.5 x hourly rate)
3	Routine	4 hours	48-72 hours	10 business days	Regular rates per vertical of work that applies Mon-Fri 7am-5pm CST
4	Month	24 hours	1 week	4 weeks	Regular rates per vertical of work that applies Mon-Fri 7am-5pm CST
5	Maintenance	72 hours	Scheduled	Scheduled	Regular rates per vertical of work that applies or contracted flat rate

FSG strives for an excellent experience with our people and technology. We encourage our clients to collaborate and provide feedback to solve challenges. FSG always acts in good faith to avoid claims, damages, or losses. Delays may occur due to factors beyond our control.

Client Responsibilities

- Provide timely access to all service locations.
- Respond promptly to FSG's reasonable requests for information or approvals.
- Ensure all work areas are clear and accessible.
- Designate a primary point of contact for coordination.

The following items are excluded unless otherwise agreed upon in writing:

- Hazardous material removal or disposal.
- Structural repairs beyond electrical or signage work.
- Services requiring permits other than standard electrical and signage permits.



National Services Rates

FSG will only charge 1 one service fee per work order request. The service fee covers expert staff 24/7 to support work order requests, service dispatch, IVR administration, service coordination, and expediting our licensed technician to the location.

Service Trade	Rates (USD/hour)	High Labor Rates (USD/hour)*
Service Fee	\$150.00	\$150.00
Journeyman Electrician	\$98.00	\$115.00
Apprentice Electrician	\$68.00	\$92.00
Aerial Services Electrician (30-55FT)	\$150.00	\$175.00
EMS Services Specialist	\$125.00	\$155.00
EVSE Service Specialist (EV Charging)	\$105.00	\$125.00
Any Trades Not Listed (Union and Other)	Cost + 20%	Cost + 20%

**High Labor Rate States: AK, CA, CO, DE, HI, IA, IL, KS, ME, MI, MN, MT, NY, NJ, NM, ND, NE, OR, UT, VT, WA, WI, Virgin Islands, Canada, Puerto Rico.*

For routine, monthly, or maintenance service requests (**Priority 3, 4, and 5**), FSG will invoice at the standard hourly service rate with a minimum charge of two hours for work performed between 7:00 a.m. and 5:00 p.m., Monday through Friday. Requests outside these hours, including nights and weekends, will be billed at 1.5 times the standard hourly rate. After the initial two-hour minimum, labor will be invoiced in 30-minute increments.

For emergency or same-day service requests (**Priority 1 and 2**), billing will be at 1.5 times the standard hourly rate, with a four-hour minimum charge.

For Special Projects that fall outside the scope of routine maintenance, FSG will provide a detailed proposal specifying the scope of work, timeline, and estimated costs. Work will begin upon receipt of the Client's written approval.

Additional Charges

- **Material Markups:**
 - Standard – Cost + 20%
 - Custom – Cost + 25% (special order)
- **Lift Rental:** Cost + 20% (delivery/pickup may vary)
- **Travel:** Additional travel charges for locations over 30 minutes (one way) from the nearest FSG center, parking, and tolls

We comply with OSHA regulations, which mandate using personal protective equipment (PPE), implementing lockout/tagout procedures, and providing an additional safety attendant as required. FSG will notify the client before adding any extra equipment and labor charges related to these safety measures.

Not-To-Exceed (NTE) Limits

- Standard service requests: \$1,000.
- Emergency service requests: \$2,000.



FSG will seek written approval for services exceeding NTE limits.

Annual Rate Adjustments

Labor rates are subject to an annual adjustment of up to 3.5%, capped at 5%, aligned with the U.S. Department of Labor's Employment Cost Index. Clients will be notified 90 days before rate adjustments.

By the signatures of their duly authorized representatives below, FSG and Client, intending to be legally bound, agree to all the provisions of this SOW as of the Statement of Work Effective Date.

Agreed to and acknowledged by:

Client

By: _____

Name: _____

Title: _____

Date: _____

Facility Solutions Group, Inc.

By: _____

Name: _____

Title: _____

Date: _____



Exhibits

The exhibits listed below, along with any appendices to those exhibits and any updates to those documents that the Parties duly agree upon after the date of this SOW, are incorporated into and made part of this SOW:

- **Exhibit A:** Locations
- **Exhibit B:** Master Services Agreement (MSA)

Exhibit A – Locations

Site Name	Address	City	State	Special Project



Exhibit B – Master Services Agreement (MSA)

– Or Client referenced MSA.

1. Term
 - 1.1. This Agreement will commence on the Effective Date and continue for one (1) year, automatically renewing annually unless terminated by either party with sixty (60) days' prior written notice by Section 15, Notices.
2. Payment Terms
 - 2.1. Fees and Invoicing: The Client agrees to pay FSG according to the rates specified in the applicable executed agreement with FSG. Invoices are payable net thirty (30) days from the invoice date. If the rate increases in the future, FSG will provide the Client with Ninety (90) days' written notice before the increased rates come into effect.
 - 2.2. Late Payments: Late payments will accrue on the third day following a late payment notice at an interest rate of 1.5% per month or the maximum rate permitted by law in the state where the work is performed.
 - 2.3. Disputed Charges: The client must notify FSG of any disputed charges within ten (10) business days of receipt of the invoice. The notice must provide a detailed explanation and any documentation the Client believes supports its basis for disputing the charge. Undisputed amounts remain payable within the stated terms. Failure to dispute any claim within the stated period is a presumption of acceptance of the charge. It may not later be disputed, unless a reasonable circumstance led to a delay.
 - 2.4. Client shall be responsible for all sales, use and excise taxes, and any other similar taxes, duties and charges of any kind imposed by any federal, state or local governmental entity on any amounts payable by Client hereunder; and to the extent FSG is required to pay any such sales, use, excise, or other taxes or other duties or charges, Client shall reimburse FSG in connection with its payment of fees and expenses.
3. Warranties
 - 3.1. FSG and its subcontractors warrant that all services performed under this Agreement will be professional and workmanlike, consistent with industry standards, and in compliance with all applicable laws, regulations, and safety standards. FSG further warrants that any materials provided as part of the services will be free from defects in material and workmanship under regular use and service for one (1) year from the installation date or completion. Any manufacturer warranties related to materials provided by FSG will be passed through to the Client to the extent permissible. Suppose the Client notifies FSG in writing of any breach of this warranty within the warranty period. In that case, FSG will repair or replace the defective services or materials at its sole discretion and expense or reperform the applicable services. This warranty does not cover defects or damages arising from improper use, misuse, alterations, neglect, unauthorized repairs, or failure to follow FSG's or the manufacturer's instructions. This provision sets forth the client's exclusive remedy for breach of warranty. FSG makes no other warranties, express or implied, including but not limited to any implied warranties of merchantability or fitness for a particular purpose.
4. Indemnification
 - 4.1. To the fullest extent permitted by law, the client shall indemnify, defend, and hold harmless facility solutions group, inc. ("FSG"), its officers, directors, employees, agents, subcontractors, and affiliates from and against any and all claims, demands, lawsuits, liabilities, damages, losses, costs, and expenses, including but not limited to reasonable attorneys' fees and court costs, arising out of or related to (a) any breach of this agreement by the client or its representatives; (b) any negligent, grossly negligent, or willful acts or omissions by the client, its employees, agents, subcontractors, or representatives in connection with this agreement; (c) property damage, personal injury, or death resulting from the client's actions, inactions, or operations; (d) any failure by the client to comply with applicable laws, regulations, or industry standards; and (e) any third-party claims arising from or related to the client's use of FSG's services and the services of FSG's subcontractors or materials provided under this agreement.



- 4.2. FSG shall indemnify the client for claims arising from FSG's gross negligence or willful misconduct during the performance of this agreement.
- 4.3. This section does not obligate the Client to indemnify the indemnitees for their gross negligence, intentional omissions, or willful misconduct.
- 4.4. The indemnity obligations contained herein shall survive the expiration or termination of this Agreement and are not limited by any limitations on liability or insurance requirements under this Agreement.
5. Insurance
 - 5.1. FSG will maintain insurance coverage as follows:
 - 5.1.1. Workers' Compensation: Statutory limits.
 - 5.1.2. General Liability: \$1,000,000 per occurrence.
 - 5.1.3. Umbrella Liability: \$5,000,000 aggregate.
 - 5.1.4. Certificates of insurance will be provided upon written request by the Client.
6. Limitation of Liability
 - 6.1. FSG shall not be liable to the Client or any third party for any loss of use, revenue, profit, or data, or for any indirect, consequential, incidental, special, exemplary, or punitive damages, whether arising from breach of contract, tort (including negligence), or otherwise, regardless of whether such damages were foreseeable or if FSG was advised of their possibility. In no event shall FSG's aggregate liability arising out of or related to this Agreement exceed the total amounts paid or payable to FSG under this Agreement in the twelve (12) months preceding the event giving rise to the claim.
7. Force Majeure
 - 7.1. FSG will not be liable for any delays or failures to perform caused by events beyond its reasonable control (each, a "Force Majeure Event"), including but not limited to:
 - 7.1.1. Natural disasters (e.g., floods, freezing weather, fires, earthquakes, hurricanes, tornadoes);
 - 7.1.2. Acts of God, fires or explosions, epidemics, pandemics, or public health emergencies, acts of war, terrorism, or civil unrest, government actions, including changes in tariffs imposed, laws or regulations, strikes, labor disputes, or shortages, failures or delays of suppliers, subcontractors, or carriers, or Utility or communication outages.
 - 7.1.3. FSG will notify the Client in writing of a Force Majeure Event as soon as practicable. If such an event exceeds sixty (60) days, either party may terminate this Agreement upon written notice without further liability, except for payment for services rendered up to the termination date.
8. Termination
 - 8.1. Termination by Either Party: Either party may terminate this Agreement for convenience with sixty (60) days' prior written notice. To preserve this agreement, both parties shall attempt to correct, repair, or mitigate the procuring cause of the termination through good faith negotiations and open communication. A termination cancels all Attachments.
 - 8.2. Client Termination and Damages: If Client terminates this Agreement for convenience, Client shall pay FSG for all work or services provided up through the termination date, plus all other reasonable costs incurred for terminating the work or activities at the site or facility (e.g. demobilization costs), plus all costs about goods, materials or equipment that cannot be mitigated or avoided as a result of the termination (e.g., restocking fees, supplier penalties or fees for goods that cannot be returned, cancellation charges for third-party contracts, costs for custom-made or non-returnable items, transportation or storage fees, and any other costs incurred about commitments made before the date of termination).
 - 8.3. Termination for Cause: Either party may terminate this Agreement immediately if the other party materially breaches any term and fails to cure within five (5) business days of receiving written notice of the breach. The following shall constitute grounds for termination for cause.
 - 8.4. Failure to make any payment when due under the terms of this Agreement, and such failure is not remedied within five (5) business days after written notice.



- 8.5. Persistent or repeated failure to perform or deliver services or materials by the terms and specifications of this Agreement.
- 8.6. Breach of any representation, warranty, or covenant contained in this Agreement.
- 8.7. Violation of any applicable law, regulation, or safety standard concerning the performance of obligations under this Agreement.
- 8.8. Insolvency, bankruptcy, or assignment for the benefit of creditors by either party.
- 8.9. Unauthorized or attempted assignment of this Agreement without prior written consent as required by the terms herein.
- 8.10. In the event of termination for cause, the non-breaching party shall have the right to seek all remedies available at law or in equity, including but not limited to the recovery of damages, attorney's fees, and enforcement costs.
- 8.11. Upon termination, all rights and obligations under this Agreement will cease except for those that should survive or are expressly reserved herein, including but not limited to payment obligations, confidentiality, warranties, indemnification, and limitation of liability.
- 9. Dispute Resolution
 - 9.1. In the event of any dispute, claim, or controversy arising out of or relating to this Agreement, including its breach, termination, or validity (a "Dispute"), the parties agree to resolve the Dispute as follows:
 - 9.1.1. Good Faith Negotiation: The parties shall first attempt to resolve the Dispute through good faith negotiations. Either party may initiate this process by providing written notice of the Dispute to the other party. The parties shall meet and confer within ten (10) business days of such notice to attempt a resolution.
 - 9.1.2. Mediation: If the Dispute is not resolved through negotiation within thirty (30) days, the parties agree to submit the matter to non-binding mediation administered by a mutually agreed-upon mediator. The mediation shall take place in the county and state of the work performance.
 - 9.1.3. Binding Arbitration: If the Dispute remains unresolved after mediation, it shall be finally resolved by binding arbitration conducted by the Commercial Arbitration Rules of the American Arbitration Association (AAA). The arbitration shall be held in the county and state of work performance, before a single arbitrator mutually agreed upon by the parties or, if the parties cannot agree, appointed by the AAA. The arbitrator's decision shall be final and binding, and judgment upon the award rendered by the arbitrator may be entered in any court having jurisdiction.
 - 9.1.4. Costs and Fees: Each party shall bear its own costs and attorney's fees incurred in the dispute resolution process, except as otherwise provided by the arbitrator's award or as required by law. However, suppose a party prevails in enforcing its rights under this Agreement or in defending against a claim. In that case, the prevailing party shall be entitled to recover its reasonable attorneys' fees, costs, and expenses and any other relief granted.
 - 9.1.5. Equitable Relief: Notwithstanding the foregoing, either party may seek temporary or preliminary injunctive relief from a court of competent jurisdiction to prevent immediate and irreparable harm, without waiving the requirement for arbitration of the underlying Dispute.
 - 9.1.6. Confidentiality: All negotiations, mediations, and arbitration proceedings related to a Dispute shall be confidential and not disclosed to any third party, except as necessary to enforce the arbitration award or as required by law.
- 10. Governing Law
 - 10.1. This Agreement shall be governed by the laws of the state in which the work is performed, without regard to the state's conflict of law principles.
- 11. Assignment
 - 11.1. Neither party may assign this Agreement without the prior written consent of the other, except in connection with a merger, acquisition, or sale of substantially all assets. This Agreement is binding on and



inures to the benefit of the parties to this Agreement and their respective permitted successors and permitted assigns.

12. Entire Agreement

12.1. This Agreement, when combined with Attachments A and B which may be modified or canceled now or in the future with written notice as provided for herein, constitutes the entire understanding between the parties and supersedes any prior agreements. Any amendments must be in writing and signed by both parties. If any term or provision of this Agreement is found by a court of competent jurisdiction to be invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction.

13. Notices

13.1. All notices under this Agreement must be in writing and delivered to the addresses specified above or such other address as either party may designate. In addition, courtesy emails with all attachments shall be sent to legal@fsgi.com and contractreview@fsgi.com.

14. Execution

14.1. This Agreement may be executed in counterparts, each of which will be deemed an original but all of which together will constitute the same document.

15. Intellectual Property

15.1. All intellectual property rights, including copyrights, patents, trademarks, trade secrets, and other proprietary rights (collectively, "Intellectual Property Rights") in all documents, work product, and materials delivered to the Client under this Agreement or prepared by or on behalf of FSG in performing the Services (collectively, the "Deliverables") shall remain the exclusive property of FSG. FSG grants the Client a non-exclusive, non-transferable, non-sublicensable, fully paid-up, royalty-free, and perpetual license to use the Deliverables solely as necessary for the Client's internal use and to use the Services provided reasonably.

16. Confidentiality

16.1. During the term of this Agreement, either party (the "Disclosing Party") may disclose to the other (the "Receiving Party") confidential and proprietary information marked or identified as "Confidential Information." Confidential Information does not include publicly available information, obtained lawfully from a third party, already in the Receiving Party's possession, or independently developed without use of the Disclosing Party's information. The Receiving Party shall protect the confidentiality of the Disclosing Party's Confidential Information with commercially reasonable care, use it only to perform obligations under this Agreement, and disclose it only to those who need to know for such purposes. If the law requires disclosure of Confidential Information, the Receiving Party will notify the Disclosing Party to allow for protective measures.

17. Lien Rights

17.1. FSG retains all lien rights and remedies available under applicable law to secure payment for Services, materials, and labor provided under this Agreement. Suppose the terms of this Agreement are not met. In that case, FSG may file a mechanic's lien, materialman's lien, or similar claim against the property where Services were performed, as permitted by law. The Client agrees to provide all necessary information and cooperation to facilitate the filing or enforcement of such liens, including property ownership details and access to applicable records.

17.2. FSG's exercise of lien rights shall not waive or limit any other remedies available to FSG under this Agreement or applicable law. The Client shall indemnify and hold FSG harmless from any costs incurred by FSG in enforcing its lien rights, including attorneys' fees.

18. Personnel Reliability

18.1. FSG performs employee background checks at the time of hire, annual driving record checks, and pre-employment and post-incident drug tests to the fullest extent possible. The client may request updated



background checks and new drug tests to satisfy its requirements under other contracts and agreements. The cost of new background checks and unwarranted drug tests will be added to the invoice period following the completion of the request.

19. Authority

19.1.FSG delegates the authority to contract to all Vice Presidents, Executive Vice Presidents, its Chief Operating Officers, and the Chief Financial Officer. Any other binding authority is expressly given by letter of delegation. If requested, Client shall provide proof of authority to bind Client to this agreement legally.

Facility Solutions Group, Inc.

By: _____

Name: _____

Title: _____

Date: _____

Client

By: _____

Name: _____

Title: _____

Date: _____